



Machiavelli's State and its Later Reception

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Abstract

The aim of this article is, first, to reconstruct Machiavelli's understanding of the nature and aims of the political community (in his language, “state”), and, second, to situate this reconstructed concept within the broader history of political ideas. It will do so through an examination of several passages in the *Discourses on Livy*, followed by a study of its reception in the seventeenth century. What will emerge is that Machiavelli's reasoning about the state connects him with several later authors in a manner that suggests the presence of a unique, and previously obscured, strand of argument about the nature of the political community; a strand of argument whose recovery can help us better to understand not only the political struggles of early modern Europe, but also the way of thinking about the state that eventually emerged dominant from them.

Keywords Machiavelli · State · Spinoza · Sovereignty · Social Contract

Whether Machiavelli possesses a distinctive way of thinking about the nature of the political community—in his own terms *stato* (state)—has been for a long time a matter of debate, its fortunes shifting in tandem with changing understandings of his place within larger narratives of the history of political thought.¹ Prior to the 1970s, Machiavelli, and especially the Machiavelli of *The Prince*, was often interpreted in a manner that attributed to him a key position in the genesis of the modern state. Orazio

¹ Important publications on this topic over the last century are, in chronological order: Ercole 1917; Condorelli 1923; Meinecke 1925; Chiappelli 1952, pp. 59–79; Chabod 1967, pp. 630–637; Rubinstein 1971, pp. 313–326; Hexter 1973, pp. 150–178; Mansfield 1983; Skinner 2002, pp. 374–385; Briguglia 2006; esp. 77–118; Vivanti, 2007, 79–98; Stacey 2013, pp. 176–194; Stacey 2025.

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Condorelli and Friedrich Meinecke, among others, each advanced various arguments that attributed to Machiavelli's *stato* a unique and coherent conceptual character.

Yet as interest in Machiavelli turned in the 1970s to his place within the history of republicanism, claims that *lo stato* is innovative in any way, or even possesses any kind of meaningful particularity as a concept, began to disappear from view.² The term came instead to be understood as containing a wide-range of meaning that can only be reduced to a very general, and for which reason not particularly illuminating, definition. In the edition of *The Prince* edited by Quentin Skinner and Russell Price, for example, *stato* is defined merely as "a political community existing within certain boundaries as well as the government of such a community."³

This deflated definition of *lo stato* should not be taken to imply, however, that there was no sense of what the political community might be, and that no implications for Machiavelli's political theory more generally followed from it. For at the heart of this classical republican tradition of which Machiavelli was deemed a part, was the belief, derived from the ancient thesis of natural sociability, that human beings are naturally inclined to live in political societies. With political life conceived of as natural, it followed that the central concern of political theory was to determine which constitution best promotes the common good of this natural community. This was to be achieved through laws and institutions that aimed to maximize a public-spirited virtue in both citizen and ruler, which, by promoting the common good, will bring concord, stability, and success in its wake. Government conducted in the interests of a group, faction, or individual will, on the other hand, generate division, instability, and weakness. For republicans, monarchy easily degenerated into a form of self-centered vice, whereas a more diffuse form of government was more likely to generate the virtuous governors necessary for a state to flourish.⁴ Machiavelli, a critic of monarchy and a partisan of popular government, seemed to many interpreters to fit into this line of argument. Thus, while an original thinker in other ways, his conception of the political community's fundamental nature remained wholly conventional from the perspective of the Renaissance, with these conventional allegiances in turn shaping the nature of his contribution to later political debates: as a paradigmatic classical republican.

However, as our understanding of the ways Machiavelli's arguments in favor of popular government differ from those of his predecessors has grown in recent years, there is increasing evidence that the aforementioned set of assumptions about the nature of the political community in his work is misleading. Recent contributions from scholars such as John McCormick and Gabriele Pedullà have shown, for example, that Machiavelli differed from his Renaissance predecessors by rejecting one of the principles considered to be central to classical republicanism: the claim that the stability and well-being of the state depends on its citizens living together in peace and harmony. Instead, Machiavelli stressed what, from this point of view, appears to be a deliberately provocative claim: that civil conflict, and not peace, is the sign of

² Particularly important interventions in this vein include Pocock 1978; Skinner 1978; Viroli 1992; Skinner 2002.

³ Machiavelli 1988, 100–101.

⁴ Variations of these arguments are visible in Pocock 1978; Skinner 1978; Viroli 1992; and Skinner 2002.

a healthy political society.⁵ Pedullà even plausibly suggests that Machiavelli's theory of conflict should be seen as inaugurating a novel paradigm in the history of political thought; a paradigm apparently founded on an understanding of the nature and aims of political life seemingly very different from those which allegedly animated his predecessors.⁶ These arguments recall earlier interpretations made by figures such as Claude Lefort and Roberto Esposito, who claimed that Machiavelli's conflictual political theory is tied to a view of political life as highly contingent, the product of conflict and not nature, and thus a sign of a significant rupture between him and the ideas of the classical and medieval past.⁷

As the rival interpretations above imply, our understanding of both Machiavelli's work itself and his place within larger narratives depends on his perception of the origins, nature, and aims of political life more generally. The objective of this article is to give an account of his views on this topic. It will do by offering an interpretation of the second chapter of the first book of the *Discourses*. In *Discourses* 1.2, Machiavelli draws on Book 6 of the Greek historian Polybius's *Histories* to describe the origin of political society, before reproducing Polybius's famous accounts of constitutional change (*anacyclosis*) and the functioning and superiority of a so-called "mixed constitution."⁸ Uniting these different stories in both Polybius and the *Discourses* is a coherent account of human motivations, which explains why people form political societies, why constitutions change, and why the mixed constitution is the best practicable form of constitution.⁹ As we will see, while this attempt at definition is necessarily limited, key principles of Machiavelli's understanding of the nature and aims of political communities can be extracted from this account.

What will emerge from this chapter of the *Discourses* is Machiavelli's belief that political bonds are not the product of natural sociability but are instead the product of an alignment of interests among the would-be citizens. From this it follows that the key to their preservation is for the political orders to be constructed with a view towards ensuring that each citizen continues to feel that their interest is best secured by continuing participation in this body.¹⁰

The significance of this argument extends beyond the *Discourses*, however. For while the bulk of this article will focus on that book, there is good reason to believe that doing so will shed light on Machiavelli's broader political theory, including that put forward in *The Prince*, and perhaps even contributing towards understanding the aims that animated his political project more generally. The reason is that Machiavelli's theory of *lo stato*, as Peter Stacey has shown, is what connects the *Discourses*

⁵ McCormick 2011; Pedullà 2011 and 2018.

⁶ Pedullà 2018; ch. 7.

⁷ Lefort 1972; Esposito 1984.

⁸ For Machiavelli's debt to Polybius 6, see Hexter 1965; Monfasani 2016; Dymond 2021; Nederman 2022; Corradetti 2024.

⁹ Dymond 2021.

¹⁰ That Machiavelli's political theory involves a balancing of diverse and conflicting human motivations and interests is central to the thesis in Hirschman 1997. There Hirschman claims that "Machiavelli...initiated the train of thought that developed into the notion of pitting passions against passions" in the interest of generating social benefit. See Hirschman 1997, 33.

and *The Prince*; both works are “parasitic” on it.¹¹ What the *Discourses* offers us is a theory of the free state—how a state acquires, maintains, and loses its freedom—while *The Prince* tells of how states are brought into and kept in conditions of unfreedom. Stacey’s argument recalls the opening lines of *The Prince*:

All the states, all the dominions that have held and now hold sway over men have been either republics or principalities.¹²

Echoing the language used by Romans to describe the power of command and obedience held by certain magistrates, Machiavelli identifies states, both free and unfree, with the exercise of *imperio*.¹³ Republics are free and principalities unfree because in the former this power of *imperio* is not held by a single person or group of people, whereas in the latter it is. The result is that republics are free because the people living in it are their own masters, while principalities are unfree because they are mastered by a prince.¹⁴ Tying together both works, and both theories, is thus the fundamental architecture of a political community itself. The account of the origins of the political community in book 1 chapter 2 of the *Discourses*—a chapter about the origins of “republics,” which we have seen is a species of “state”—for this reason brings with it implications that go beyond that text and the republican theory contained within it: it helps us to see what unites Machiavelli’s political theory more generally, while also opening up an avenue to re-assess his place in larger narratives.¹⁵

Indeed, a better understanding of this concept has great significance for understanding the various facets of Machiavelli’s political theory, from what he thinks is necessary to acquire, maintain, and lose freedom, to imperial expansion (the subject of *Discourses* book 2), to understanding the dynamics of political conflict and the benefits, as well as drawbacks, inherent within it.¹⁶ But in an effort to understand the broader significance of reconstructing this distinctive concept, the article will show instead that Machiavelli’s way of thinking about the nature of the political community was a central part of the reception of his ideas in European early modernity, with it coming to structure the political treatises of some of Machiavelli’s most prominent readers. The focus here will be on the seventeenth century Dutch republic, a period and place torn between the centralizing ambitions of monarchical figures both in the Netherlands and beyond, on the one hand, and individual communities seeking to

¹¹ Stacey 2013, p. 176; Stacey 2025.

¹² “Tutti li stati, tutti e’ domini, che hanno avuto e hanno imperio sopra li uomini, sono stati e sono o repubbliche o principati,” Machiavelli 2006; ch. 1. Translation from Machiavelli 1988, 5. For the centrality of this definition to Machiavelli’s project, see Stacey 2014.

¹³ On Roman *imperium*, see Richardson 2008, 66–79.

¹⁴ Stacey 2013, pp. 184–194; Stacey 2014, 208–212.

¹⁵ Machiavelli 1988, 5.

¹⁶ Conflict, in particular, is an area that demands further study along these lines. An awareness of what maintains fundamental political bonds might go some way towards understanding how Machiavelli draws the line between beneficial and problematic conflict; a distinction that the scholarship on conflict has tended to marginalize. The classic place to see this distinction is the introduction to book 3 of the *Florentine Histories*, where Machiavelli compares conflicts in Florence and Rome, the former unfavorably and the latter favorably. On this problem, see Bock 1990.

bolster their independence, on the other. It is for this reason a particularly rich place to look to see by whom, against whom, and with what objective, these ideas inherited from Machiavelli were employed and thus to understand his theory's historical role. In conclusion, the article will then offer some observations on the implications of this reconstruction for our historical account of the modern sovereign state, which, it alleges, will now appear in a slightly—but significantly—different light.

1 I

Reflecting a distinction common at this time, Machiavelli begins the *Discourses* by distinguishing between the city (*città*) and the state (*repubblica*), or the group of individuals dwelling together in one place, and the organization of those people into a political body.¹⁷ Worthy of note initially is that while the two concepts are distinct, they do overlap: the ideal political organization of a city is typically related to the reasons for which people come together into cities in the first place, and Machiavelli is no different from others in this respect. On a conventional Aristotelian account, in which social life is the product of a desire to live the good life, the optimal political organization is one that facilitates the attainment of that end. For Machiavelli, however, the end is more straightforward: they decide it is in their shared interest to do so.

He begins the first chapter—on cities—with a distinction between cities founded by natives or foreigners, on the one hand, and those founded freely or subject to another city, on the other. While he does not offer a clear definition, the essence of a city he suggests is that it is a group of men who have chosen to live together because they have determined that doing so is to their benefit.

The first case [cities founded by natives] is when it does appear, to inhabitants dispersed in many small parts, that they live insecurely, since each part by itself, both because of the site and because of the small number, cannot resist the thrust of whoever assaults it; and when the enemy comes, they do not have time to unite for their defense. Or if they did, they would be required to leave many of their strongholds abandoned; and so they would come at once to be the prey of their enemies. So to flee these dangers, moved either by themselves or by someone among them of greater authority, they are restrained to inhabit together a place elected by them, more advantageous to live in and easier to defend.¹⁸

¹⁷ Brett 2011; ch. 5.

¹⁸ “Il primo caso occorre quando agli abitatori dispersi in molte e piccole parti non pare vivere securi; non potendo ciascuna per sé, e per il sito e per il piccolo numero, resistere all’impeto di chi le assaltasse, e ad unirsi per loro difensione, venendo il nimico, non sono a tempo, o, quando fussono, converrebbe loro lasciare abbandonati molti de’ loro ridotti, e così verrebbero ad essere subita preda dei loro inimici: talmente che, per fuggire questi pericoli, mossi o da loro medesimi o da alcuno che sia infra loro di maggiore autorità, si restringono ad abitare insieme in luogo eletto da loro, più comodo a vivere e più facile a difendere,” Machiavelli 2023, 60–61. Translation here and in what follows from Machiavelli 1996.

Notable about this passage is that Machiavelli describes the origin of the city as something contingent; it is not presented, as it was for so many authors who followed Aristotle, as the product of the unfolding of human nature. Shared feelings of insecurity are the impetus that brings people to dwell together in cities. There is, he implies, a state of being before life in cities. The shape of this pre-urban life is unclear—he mentions that people, perhaps clans or kinship networks, initially have their own “strongholds”—but the point remains that the transition from this original state of dispersion to one of common life is brought about by the mutual recognition that individual lives will be improved by doing so. Put simply, people leave their dispersed natural state to gather in cities in order to realize the shared interest of security.

Machiavelli then turns, in the next chapter, to the initial organization of these groups politically: to the formation of the republic, in his language. Following his source Polybius, he makes clear that his intention is to determine the principles upon which a successful political society must be organized, and that the model from which he will draw these principles is Rome. While not founded in a state of perfection, he says, Rome had a “good beginning,” by which he means that its initial laws and institutions embodied those principles to a certain extent, enabling its constitution later to become “perfect.” His subsequent account of the initial formation of political society and the cycle through which constitutions change is thus meant to illustrate these principles, which he will then later use to assess Rome’s constitution and to account for its success. Following a summary of the three traditional forms of constitution—monarchical, aristocratic, and popular—he starts with a description of the original institution of government:

These variations of government arise by chance among men. For since the inhabitants were sparse in the beginning of the world, they lived dispersed for a time like beasts; then, as generations multiplied, they gathered together, and to be able to defend themselves better, they began to look to whoever among them was more robust and of greater heart, and they made him a head, as it were, and obeyed him.¹⁹

The first thing to note about this account is that the origin of government, like that of the city which the government organizes politically, can ultimately be traced to a shared interest—an interest in a more secure way of life—alongside the belief that this interest will be better served by life under an authority structure: originally dispersed men unite around a head, a *capo*, he says, so that they can better defend themselves. *Capo* is a highly suggestive word choice here, implying that they form a kind of body with this strongman at its head, organized for the sake of mutual protection. Both the choice to live communally, and the organization of this communal life under a political structure, are thus responses to the apparently un-social and violent character of what can reasonably be called Machiavelli’s “state of nature.” The reality

¹⁹ “Nacquono queste variazioni de’ governi a caso intra gli uomini: perché nel principio del mondo, sendo gli abitatori radi, vissono un tempo dispersi a similitudine delle bestie; dipoi moltiplicando la generazione si ragunarono insieme, e per potersi meglio difendere, cominciarono a riguardare infra loro quello che fusse più robusto e di maggiore cuore, e fecionlo come capo e lo ubedivano,” Machiavelli 2023, 65–66.

of this state of nature then brings people living within it to the realization that their interests are best served in common life, under an authority that regulates it.

The second thing to note is that the elevation of the *capo* assumes the form of an informal agreement among the others to, as Machiavelli says, “obey” him.²⁰ Most revealing, however, is what is not said: nowhere is this idea of obedience joined with words suggestive of *obligation*.²¹ Instead, Machiavelli sets up a dynamic in which the decision to obey the *capo*, and thus the integrity of the body of which he is head, depends on that person continuing to possess the characteristics judged necessary by the others to secure their desired aims. In this case, that aim is “to be able to defend themselves better.” Continued obedience depends, in other words, on the confluence of two variables: first, the existence of a shared interest among the to-be citizens of the state, and, second, the ability of an authority figure to satisfy that shared interest.

This dynamic goes on to structure the rest of the chapter. As Machiavelli elaborates on the cycles of constitutions it becomes apparent that constitutional change is driven by the ability of authorities to embody that shared, yet also evolving, interest. After the elevation of the *capo*, individual perception of where their interests lie began to change. The apparent cause of this transformation was acclimation to a fundamentally new way of life within political society, which brought with it new, internal, threats. “Seeing that if one individual hurt his benefactor, hatred and compassion among men came from it,” Machiavelli says, and since they thought that “those same injuries could be done to them,” “to escape like evil they were reduced to making laws and ordering punishments for whoever acted against them.” As a result, “when they next had to choose a prince,” they went “after not the most hardy but the one who would be more prudent and more just.”²² As the shared aims—the shared interests—of the ruled change, so does the kind of person they choose to obey in order to realize those interests.

Later instances of constitutional change can also be explained by this dynamic. When, for example, the just and prudent monarch is eventually replaced by one concerned above all with satisfying his own desires, the others ceased to obey him, leading to a change in regime type. Keeping with the earlier pattern, they chose instead to obey alternative authority figures who do in fact embody the principles they deem necessary to secure their shared interests. As “conspiracies” against the corrupt monarch arose at the hands of “those who were in advance of others in generosity, greatness of spirit, riches, and nobility,” the “multitude...armed itself against the prince,” initially following those aristocrats in their rebellion against the monarch before “obey[ing] them as its liberators when he was eliminated.”²³ In short, when

²⁰ It is “informal” because there is no “contract.”

²¹ Stacey 2025 shows that obedience is tied to the receipt of benefits, not obligation.

²² “...veggendo che se uno noceva al suo benificatore ne veniva odio e compassione intra gli uomini, biasimando gl’ingrati e onorando quelli che fussero grati, e pensando ancora che quelle medesime ingiurie potevano essere fatte a loro, per fuggire simile male si riducevano a fare leggi, ordinare punizioni a chi contrafacessi: donde venne la cognizione della giustizia,” Machiavelli 2023, 66.

²³ “Da questo nacquero, appresso, i principii delle rovine e delle conspirazioni e congiure contro a’ principi... fatte... da coloro che per generosità, grandezza d’animo, ricchezza e nobiltà avanzavano gli altri.... La moltitudine adunque seguendo l’autorità di questi potenti s’armava contro al principe, e, quello spento, ubbidiva loro come a’ suoi liberatori,” Machiavelli 2023, 66.

the prince ceased to protect the governed, the governed ceased to obey him. The “multitude,” believing that the aristocrats would govern in their interest, began to “obey” them instead, just as earlier generations did in the case of the strongman *capo* and, later, in the case of the just monarch.

An important feature of this account is that the integrity of the state does not only depend on the presence of an authority figure who can embody those shared interests. That aspect of the theory depends, in turn, on the existence of such a shared interest. This becomes particularly apparent in the final stage of *anacyclosis*: ochlocracy. A corruption of democracy, which Machiavelli describes as popular government conducted in the public interest, ochlocracy is also characterized by a diffuse distribution of political power, but it is one where that power is exercised in the interest of the individual men who hold it. Diffuse power is used, in other words, to further diffuse, as opposed to shared, private interests. It is a regime of widespread “license,” Machiavelli says, “where neither private men nor public were in fear, and each living in his own mode, a thousand injuries were done every day.”²⁴ The significance of ochlocracy as the final stage of the cycle is thus that it creates a situation in which individual interests begin to diverge, with the consequence that any common cause between citizens begins to break down, bringing them back to a state that resembles the widespread insecurity that characterized the initial state of nature out of which political life first emerged. With the collapse of a shared interest comes the collapse of the body of the state, in other words. Yet, in keeping with the cyclical nature of his account, this also leads, eventually, to a point in which they could find common cause in their desire for security once again, laying the foundation for a new state and recommencing the cycle: “so, constrained by necessity, or by the suggestion of some good man, or to escape such license, they returned anew to the principality.”²⁵

This conception of the state that emerges from *Discourses* 1.2—as a collective body established as a consequence of an alignment of interests and preserved through the collective co-dependency of its members—receives particularly vivid exemplification in Machiavelli’s later examination of Appius Claudius’s attempt to organize a new political body, a new state, around himself in Rome.²⁶ The context for this event was, as is often the case in Machiavelli’s account of Roman history, conflicts between plebians and patricians, caused by each side’s belief that the magistracies most affiliated with each group, the consuls in the case of the patricians and the tribunes in the case of the plebs, were oppressing the other. The result of this conflict was the creation of a set of competing interests: those of the plebs, on the one hand, and those

²⁴ “...se venne alla licenza, dove non si temevano né gli uomini privati né i pubblici; di qualità che vivendo ciascuno a suo modo si facevano ogni dì mille ingiurie,” Machiavelli 2023, 67.

²⁵ “...talché, costretti per necessità o per suggestione d’alcuno buono uomo, per fuggire tale licenza, si ritorna di nuovo al principato,” Machiavelli 2023, 67.

²⁶ In *Discourses* 1.40, Machiavelli claims multiple times that Appius aspired to establish a “tyranny” in the city. A tyranny, he says in 1.2, is a species of republic, or state, albeit a precarious one. “Perché in tale discorso si vedrà molti errori fatti dal Senato e dalla Plebe in disfavore della libertà, e molti errori fatti da Appio, capo del Decemvirato, in disfavore di quella tirannide che egli si aveva presupposto stabilire in Roma,” Machiavelli 2023, 147. Machiavelli’s contrast between liberty under the rule of the Senate and Plebs, on the one hand, and tyranny under the rule of Appius, recalls his distinction in *The Prince* between republics and principalities as different forms of *stato*, the former free and the latter unfree. Appius, Machiavelli seems to be telling us, wants to a prince; he wants to organize a new state around himself.

of the patricians, on the other. Appius Claudius and the other nine members of the Decemviri were selected for that special, extraordinary magistracy because both the plebs and the nobles saw in them an opportunity to remove the ordinary magistracies that each believed were responsible for their oppression.

Appius then seized this moment by positioning himself as the defender of the plebs, leveraging his position of influence as both a magistrate and a wealthy patrician to offer benefits to the plebs and to harm the patricians. "By striking the nobility," Appius and the other Decemviri "made the people favor them."²⁷ Initially, his strategy worked. With his ability to cater to their interests, namely to offer them protection from the patricians, the plebs happily followed Appius. Had Appius continued with this strategy, Machiavelli tells us, he likely would have been successful at establishing his tyranny. For it is a general rule of politics that, on the occasion of a divide between the nobles and the people, if someone is capable of catering to the interests of the more numerous people, they will always become prince: "when a people brings itself to commit the error of giving reputation to someone because he attacks those whom they despise, and if that person is savy, it will always happen that that person becomes tyrant in that city."²⁸

However, Appius did not continue to do this. Instead, he tried to shift his power base towards the patricians, and began to oppress the plebs. Alongside an attempt to kidnap the plebeian girl Virginia from her family, Appius also cultivated young noble "satellites," to whom he would distribute goods seized from other citizens.²⁹ While taken to consolidate his tyranny, these actions eventually backfired by turning citizens against him. Instead of remaining a person capable of securing their interests, Appius had become the leader of minority faction that posed a threat to them, leading initially the plebs, and then eventually members of the patrician class, to advocate successfully for the return of the original magistracies, bringing his attempt to re-organize the state into a principate around his person to an end.

To conclude, in the *Discourses* Machiavelli portrays the political community in highly unconventional ways—at least from the perspective of how we understand the assumptions of pre-modern political thinking—as an artificially established body of rulers and ruled, organized to secure a shared interest. At its origin, that shared interest was physical security, but that can and indeed does change depending on the broader circumstances. The integrity of this body depends on the governed continuing to associate membership in it, and obedience to its authorities, with their own interest. It begins to deteriorate—to disperse—when the rulers no longer provide that protection, as began to happen to the Roman state as class conflict grew, leading to the elevation of the Decemviri, and as Appius's failed attempt to become prince likewise demonstrates. In that case, the ruled will look towards others, re-organizing the body of the state around those who will provide for those interests. The best and most

²⁷ "...parendo alla plebe che Appio fusse diventato popolare e battessi la nobilità, si volse il popolo a favorirlo," Machiavelli 2023, 150.

²⁸ "E quando uno popolo si conduce a fare questo errore, di dare riputazione a uno perché batta quelli che egli ha in odio, e che quello uno sia savio, sempre interverrà ch'è' diventerà tiranno di quella città," Machiavelli 2023, 150.

²⁹ "...e farsi satelliti della gioventù nobile..." Machiavelli 2023, 149.

stable constitution is therefore one that can reliably create conditions over the long-term in which the members of the multitude will continue to associate their interest with obedience to the authorities. By ensuring that all groups of citizens form part of the government of a state, thus orienting collective institutions towards shared aims, the “mixed constitution” is well-equipped to keep the citizens mutually dependent and to achieve this end.³⁰ It is perhaps surprising, then, that Machiavelli, a theorist most known for advising princes on how to acquire dominions, in fact develops a political theory based on the premise that a stable political authority, whether that of a prince or a people, is in fact a sign of a relationship of mutual dependency between rulers and ruled.

2 II

Of the many places where Machiavelli’s influence can be discerned in early modernity, the theory of the state expressed in his writings would leave an especially strong mark in the work of a number of Dutch republicans.³¹ This group of writers, which includes figures such as the brothers Pieter (1618–1685) and Johan De la Court (1622–1660) as well as Baruch Spinoza (1632–1677), are widely acknowledged to hold idiosyncratic views from the perspective of classical republicanism.³² Their differences are most apparent in their rejection of the thesis of natural sociability, and their related endorsement of a conception of human nature as anti-social. These characteristics of their thinking are conventionally interpreted as being the result of incorporating ideas originally developed by Thomas Hobbes. Hobbes’s intervention was, on this account, a paradigm shifting moment in the history of political ideas, with even those skeptical of his centralizing and monarchist aims endorsing some of his foundational assumptions about human nature.³³ In light of the above reconstruction of Machiavelli’s thinking about the state, however, there is reason to believe that the De la Courts and Spinoza should be seen as in continuity with his thinking about this subject. When we place their work next to Machiavelli’s, we can in fact begin to trace such a continuity between them, suggesting that the state concept contained in Machiavelli’s work has a larger history, and one with a key role in an important and dramatic early modern political debate.

The brothers De la Court, who were avid readers of Machiavelli in general and of the *Discourses* in particular, are most known for developing a republicanism that they believed to be suitable for commercial urban societies, such as those of the Netherlands, instead of the agricultural ideal that was supposedly at the heart of the

³⁰ See Lazzeri 2006 for a similar argument about the importance of an alignment of interests in Machiavelli’s political theory and of the risks that follow from misalignment.

³¹ My point here is not to say that these authors understood themselves to be followers of Machiavelli. Indeed, they sometimes critiqued Machiavelli strongly. The point is to say that the way of thinking about the state expressed by Machiavelli, and available in his widely circulated works, would also appeal to them.

³² Haitsma Mulier 1980; Van Gelderen 2003; Weststeijn 2024. For the De la Courts more generally, see Weststeijn 2012.

³³ Malcolm 2002, pp. 27–52; Van Gelderen 2003; James 2012, pp. 233–319; Weststeijn 2024.

classical tradition. This “commercial republicanism” was “exclusivist” and highly democratic, holding that monarchy—even a monarchical element within a mixed constitution—was not considered compatible with liberty. Indeed, their works were in part intended as interventions in opposition to the centralizing claims of the Dutch *stadtholder*. In Johan’s work *Political Balance*, published with additions by Pieter in 1662, he justified the value of his democratic ideal with reference to a particular theory of what it is that brings individuals together into political society. Relying on an understanding of human nature supposedly indebted to Hobbes, the De la Courts claim that human beings are by nature self-interested and this makes society difficult to bring about. Yet, unlike Hobbes, natural man is not brought into society through an agreement to obey a sovereign. Such an agreement hinged on obligation, an idea that was too monarchical for the De la Courts’ taste. They claim instead that society becomes possible when there is a unity of private interests, and when that common, private interest is ensured and enforced through various laws and institutions,³⁴ an argument filled with what we have seen to be a set of very Machiavellian ideas.³⁵ Necessary to preserve this alignment of private and public, they argue, is the presence of a popular assembly in which all the citizens can express their own interests. Since the integrity of the state depends not on a previous agreement to obey, but on the ability of its government to generate the conditions that preserve a union among human beings not otherwise inclined towards society, states are better off when ultimate political authority is located in such a diffuse body.

Of perhaps greater significance, however, is that we can discern a very similar understanding of the foundations of political life in the work of Spinoza. Spinoza read Machiavelli (as well as the work of the De la Courts) with great interest, and the immense nature of his debts to the Italian writer is becoming increasingly clear.³⁶ We should now add to these debts his very similar argument about the emergence of the political community from a state of nature in Chapter 16 of his *Theological-Political Treatise* (1670):

Everyone wishes to live as far as possible securely beyond the reach of fear, and this would be quite impossible so long as everyone did everything he liked [such as in the state of nature]... there is no one who is not ill at ease in the midst of enmity, hatred, anger and deceit, and who does not seek to avoid them as much as he can... When we reflect that men without mutual help... must live most miserably... we shall plainly see that men must necessarily come to an agreement to live together as securely and well as possible...³⁷

Spinoza here agrees with Machiavelli that political society is not the product of a natural political instinct but is instead created on the realization that they would ben-

³⁴ Weststeijn 2024.

³⁵ For further overlap between Machiavelli and the De la Courts on the origin of political life, see Lavaert 2024; ch. 4.

³⁶ Del Lucchese 2009. Justin Steinberg argues that Spinoza’s realism should be understood as indebted to Renaissance political thought (Steinberg 2018).

³⁷ Spinoza 1883, 202.

efit from leaving the insecurity of the state of nature. But, also like Machiavelli, the solution to the troubles of the state of nature is not obligation, but rather alignment between private benefit and collective action, leading to the same kind of informal and non-contractual agreement to live under an authority. Without that, the body of the state will collapse, and the state of nature will return, as he says here:

A compact [such as the one at the basis of the state] is only made valid by its utility, without which it becomes null and void... Obedience does not consist so much in the outward act as in the mental state of the person obeying; so that he is most under the dominion of another who with his whole heart determines to obey another's commands.³⁸

Spinoza thus seems to share with Machiavelli and the others this distinctive view of the nature of political society: like the Hobbesian state, it is an artificial body, not the product of natural sociability; yet, unlike the Hobbesian alternative, it is not held together through obligation, but through an alignment of interests, with the most well-ordered states most capable of building and maintaining such an alignment.³⁹

What are we to make of the common thread uniting these authors, and how does their shared interest in Machiavelli relate to it? As we have seen, what both the De la Courts and Spinoza have in common is their opposition to the theory of sovereignty as obligation elaborated by the likes of Grotius and Hobbes, at the heart of which is the idea that the state is constituted by an enforceable contract. In a famous letter, Spinoza sought explicitly to differentiate himself from Hobbes on this point. Reiterating his position previously stated in the *Theological-Political Treatise*, he argues that a magistrate's authority does not derive from a supposed contractual transfer of right to him, but instead from the fact that those subject to him continue to choose to obey him: "in each State the Supreme Magistrate has no more right over its subjects than it has greater authority over them."⁴⁰ A magistrate's "right" over the others comes not through an enforceable contract leading to the forfeiture of natural right, but from the fact that the sovereign possesses a power over them; a power that, as we have just seen, is the result of the subjects believing that their interest is best served by obeying. On Spinoza's account, the problem with Hobbes's theory is that its use of this legalistic concept is overly abstract, and therefore obscures the true nature

³⁸ Spinoza 1883, 216.

³⁹ Vardoulakis 2020 traces Spinoza's emphasis on utility to his engagement with Epicureanism, which sets up interesting parallels with Machiavelli. The reason is that some interpreters have argued that Machiavelli himself, and in particular book 1 chapter 2 of the *Discourses*, is heavily indebted to Lucretius's Epicureanism. I have argued here that we should see Polybius, and not Lucretius, as Machiavelli's principal source for this chapter, and give evidence in Dymond 2021 for why. Nevertheless, these connections between Machiavelli and Spinoza, both with respect to ideas and to classical sources, offer further evidence that part of Spinoza's debt to Machiavelli is the former's careful consideration of the various causes that bring people into political societies, which appear to overlap with Machiavelli's own careful thoughts on this question. The authoritative treatment of Machiavelli's engagement with Lucretius remains Brown 2010.

⁴⁰ Epistle 50, to Jelles. Quote from Spinoza 1985, 390. See Lazzeri 2001, pp. 382–384 for more on this difference.

of social relations.⁴¹ Machiavelli, himself a critic of the abstraction inherent in the juridical discourse of sovereignty extant in his day, thus came to be employed in a strand of argument critical of the contemporary discourse of sovereignty and, more fundamentally, of the idea that society is constituted by contractual obligation that those theories rested on.⁴² And at the heart of this argument was an alternative way of thinking about the causes of social and political life—an alternative theory of the state—that had earlier been expressed by Machiavelli himself.

3 III

That the De la Courts and Spinoza share with Machiavelli a distinctive view on the nature of the political community that is neither Hobbesian nor rooted in an account of natural sociability is a matter of some importance: it calls into question a set of claims that are key to our understanding of the modern state and its history. According to what has become our established account, the thesis of natural sociability was dominant up until the mid-sixteenth century, at which point, in the midst of civil war and religious reformation, Europeans began to question it. In its stead appeared a very different argument: that human beings are in fact by nature unsocial and prone to violence. It followed that this natural condition would inevitably force them to reach the conclusion that only a concentrated and “awe-inspiring” power, to which people are obliged, could provide the stability and predictability necessary for society, leading them to agree to establish such a power and create a state. This moment then served as a major turning point in the history of political ideas; it was a paradigm shift that led to a set of assumptions about an anti-social human nature acquiring the dominant status previously held by natural sociability, in turn shaping new interventions, and even ones critical of sovereignty.⁴³ According to this narrative, these interventions include those of Spinoza and the De la Courts, who, as we have seen, are supposed to have drawn from Hobbesian assumptions to advance a non-Hobbesian and non-Grotian set of claims.

Yet now that we have seen that alternatives to the thesis of natural sociability were in circulation long before the classic early modern crises, the innovations of writers such as Grotius and Hobbes, and the debate that surrounded them, begin to appear in a different light. In particular, their view that society can only be maintained through the presence of a sovereign power to which all citizens are obliged appears now to be a product of a factor other than a response to the collapse of natural sociability. I would like briefly to suggest here in conclusion that placing their views next to Machiavelli's reveals that what was at the heart of the debate over the idea of sover-

⁴¹ Antonio Negri likewise claims that Spinoza makes a “critique of every juridical mystification of the State.” See Negri 1991; xviii.

⁴² Arum 2024. This article does not make any connections between the juridical arguments against which Machiavelli directed his criticisms and figures such as Grotius, but Daniel Lee has shown that these earlier jurists should be considered predecessors of early modern social contract theorists. See Lee 2016.

⁴³ Quentin Skinner has done much to make this story the norm. The most recent version of his argument can be found in Skinner 2019; especially ch. 12. Others endorsing a version of this thesis include Tuck 1993; Hont 2010; and Sagar 2018. The list is much more extensive. For a selection, see Sagar 2018, 5–13.

eignty was instead a disagreement about something more fundamental: the character of social interaction and, in particular, whether the integrity of society depends on the enforcement of contracts.

While it is well-known that an agreement is what initially constitutes the state for social contract theorists such as Hobbes, it is often overlooked that contract does not just create political society. A wide range of social interaction, including family life, is also understood in terms of contract. Moreover, a disinclination to keep covenants is, Hobbes says, a primary cause of the insecurity that characterizes the state of nature, for which reason the keeping of covenants is among his laws of nature. The keeping of covenants, on the other hand, is a characteristic of life in society under a sovereign.⁴⁴ While it is true that human beings possess many instincts that make natural society difficult, it is this aspect—the need to enforce covenants—that lends itself most clearly to justifying the presence of an absolute sovereign. Since trust is necessary to enter into contracts with others on a consistent basis, this is most easily accomplished through the presence of an enforcer who is neutral and impartial, or at least neutral and impartial with respect to the parties of a pre-existing contract. But neutrality in this case also demands sufficient abstraction and concentration: for if the agency is too close, or too weak, they may easily be corrupted by the various parties under their jurisdiction, and thus no longer be neutral. The enforcer of agreements must be capable of ensuring, for example, that a rich man does not leverage his social position to violate an agreement with a poor man, and this can only happen if the enforcer is not himself vulnerable to the power and prestige of his subjects.

In contrast, for Machiavelli and his followers, a need to preserve pre-existing contracts among individuals is not what drives the formation of political society; society is, for them, the product of a far more complex set of causes and motivations. The result is a much less abstract understanding of social relations and a much more context-specific approach to preserving them. As a result, the power relations necessary to preserve a state assume a form far different from that of juridical sovereignty. Instead of requiring neutrality and impartiality among governors, secured through concentration and abstraction, the preservation of society in fact depends on the reverse observation: that power is most effectively exercised in a diffuse manner that incorporates the particular inclination of the governed, instead of trying to overcome them.

The implications of this distinction with respect to the character of sociability go well beyond the issue of sovereignty. They also have very real consequences for the types of societies that are constructed and thus the types of states that come into being. For example, understanding social relations in terms of contract enables a people spanning a vast territory, living in multiple cities with varying demographic profiles and challenges, to be integrated into the same state. What matters is that their agreements with each other are maintained by their mutual obligation to the same

⁴⁴ These points are made in Hobbes 1996; chs. 14, 15, 17, and 22. For an interpretation of Hobbes that stresses these juridical relations, and their implications of how we should understand Hobbes's theory of sovereignty, see Dyzenhaus 2001. For the related claim that Grotius's state of nature is defined by the presence of enforceable contracts, among other legal institutions, see Straumann 2015.

sovereign.⁴⁵ But for Machiavelli, this does not seem possible. As he says in both *The Prince* and the *Discourses* on several occasions, a prince or people that governs another city should do so according to laws specific to them, usually their own, original laws. He does not advocate the same laws for all cities, for he regards the best laws as responding to particular set of interests—the particular *materia*, to use his words—of the specific city.⁴⁶ Built into his theory, then, are a set of assumptions that prevent the construction of a mass society, with the same laws, the same elite, and the same politics across multiple cities. It is not surprising, then, that this way of thinking about the state would be attractive in places such as the Netherlands, where writers such as the De la Courts and Spinoza remained advocates for the autonomy of city-states within a broader federation and opposed to the centralizing campaigns of others in their area, who preferred the alternative.⁴⁷

What this reconstruction of Machiavelli's thinking about the state and its later reception shows, then, is that far from ushering in a paradigm shift in political thinking, the interventions of people such as Hobbes should in fact be seen as part of a longer debate over the character of an artificial entity called the “state,” a debate that hinged, in turn, on disagreement over the reducibility of social interaction to relations between equal rights holders. Reconstructing this alternative thus not only allows us to understand better the motivations and aims of key early modern actors. It also puts into sharper relief the historical conditions in which the juridical sovereignty idea initially acquired dominance, as well as the underlying assumptions that shaped—and perhaps continue to shape—the actions of the states created in its image.

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⁴⁵ This conclusion derives further support from a recent article by Taisu Zhang and John D. Morley on the connections between the modern state and the modern corporation. Zhang and Morley argue that the modern state's broad reach and neutrality made possible the emergence of the corporation by providing security that contractual relations entered into with people outside of one's close-knit network will be enforced. On the account I am suggesting here, the sovereign state's immense and concentrated authority derived legitimacy from its ability to do this. That it appears to have done that, evidenced by the apparent emergence of the modern business corporation under it, supports the claim that enforcing and securing contracts was one of its animating objectives, orienting its actions. See Zhang and Morley 2023.

⁴⁶ See, for example, *Discourses* 1.18.

⁴⁷ Weststeijn 2024.

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